



Oregon Judicial Department
Washington County Circuit Court
Twentieth Judicial District

September 9, 2025

Case #25JU04261

Dear Ashle Antoinette Penn,

I hope this letter finds you well. Attached is an application for a Court-Appointed Attorney. Please fill out this application to its entirety. If there is something that does not pertain to your situation, please write N/A in the corresponding line instead of leaving it blank. The last three pages are for your records.

A follow up phone interview may be necessary to clarify information if needed.

When finished, please return to me by mail, fax, or email so that I can process, and if approved, assign your attorney. The court does not accept photo images of applications. My information is below.

Respectfully,

Angela Robison
Dependency Clerk
222 N First Ave
Hillsboro, Oregon 97124
Phone (503) 846-8888 Ext: 70653
Fax (503) 846-8260
Angela.M.Robison@ojd.state.or.us

WASHINGTON COUNTY COURTHOUSE

Juvenile Department

(503) 846-4701

(503) 846-8066

COMPLETE FOR YOUR COURT-APPOINTED ATTORNEY

PLEASE PRINT

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Who is your court-appointed attorney now? _____ None +

Date _____ In Custody _____ Out of Custody _____

Date of Birth _____ Interpreter Needed? Spanish Other _____

Full Name _____
First _____ Middle _____ Last _____

Residence/Mailing Address

_____ Street Address _____ Apt # _____

_____ City _____ State _____ Zip _____

Email Address _____

Home Phone Number _____ Work Number _____

Message Number _____ Cell Number _____

FOR OFFICE USE ONLY	
Case Number	<u>25J04241</u>
Attorney	<u>MPD</u>
<u>Ashle Antoinette Penn</u>	

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

IN THE MATTER OF:

CASE No.

CHILD/REN

APPLICATION FOR APPOINTMENT
OF COUNSEL
& DECLARATION IN SUPPORT

Applicant Name: _____
(person to be represented) First Middle Last

ACCESS TO THIS DOCUMENT IS RESTRICTED TO PROTECT THE PRIVACY OF PARTIES

I am the ☐ Mother ☐ Father ☐ Guardian ☐ Other: _____

1. I am applying for appointment of counsel in this case because I cannot pay for a lawyer without substantial financial hardship.
2. I understand that payment is a debt to the state of Oregon. Additional fees may be added for administrative and collection costs.
3. I understand that if I am appointed counsel, I may be ordered to pay a portion of the cost based on my financial ability.
4. I understand that if any information provided on this application is not true, I may be required to pay the full cost of my representation. I understand I may be charged with a crime and/or contempt of court.

Declaration

1. PERSONAL

Date of Birth (month/day/year) ____/____/____ Driver License/State ID: _____

*SSN: ____ - ____ - ____ *I am providing my Social Security number voluntarily. I understand that I cannot be forced to provide it or be denied consideration solely for failure to provide it. It may be used to verify my identification, employment information, and for collection of fees.

Marital Status: ☐ single ☐ married/RDP ☐ divorced ☐ separated ☐ other: _____

Number of legally dependent children in your household: _____

Complete the rest of the form with amounts for yourself and your spouse/Registered Domestic Partner combined (unless noted)

2. INCOME AND EMPLOYMENT Amount received per month (after taxes are taken out)

Wages, Salary (yourself):		Retirement (pension/401K/IRA)	
Wages, Salary (spouse/RDP):		Tribal benefits:	
SSI:		Spousal/Partner/Child Support:	
Unemployment payments:		Income from other sources*:	

**including annuities, settlement income, and any other source of funds or support*

TOTAL INCOME FROM ALL SOURCES: _____

Employment Information (the court may contact your employer to verify information)

List all current employers and sources of income for **yourself**

Name	Address or Location	Occupation	Income/mo

List all current employers and sources of income for **your spouse/Registered Domestic Partner**.

Name	Address or Location	Occupation	Income/mo

3. ASSETS ☐ Additional page attached titled "Assets, cont."

Total cash available from all accounts: _____ (cash, checking account, savings, etc.)

➤ Bank Accounts (in your name or your spouse's/Registered Domestic Partner's name)

Name of Bank	Account #	Current Balance

➤ Real Property (in your name or your spouse's/Registered Domestic Partner's name)

Address	Equity

➤ Vehicle (regular use car, truck, motorcycle, scooter, etc.)

Year, Make, Model	Value	Equity

➤ Personal Property (including additional vehicles, boats, recreational vehicles, guns, jewelry, livestock, business interest, ect.)

Description	Value

TOTAL VALUE OF ALL ASSETS & CASH: _____

4. MONTHLY EXPENSES (minimum payment per month)

Medical expenses and health insurance costs:	
Court fines/support judgments/wage garnishments:	
Child care:	
Student loans and education expenses:	

TOTAL MONTHLY EXPENSES: _____

5. DEBTS (in your name or your spouse's/Registered Domestic Partner's name)

Description	Total

☐ Additional page attached titled "Debts, cont."

☐ Other information I want the court to consider is on the attached page titled "Other Information"

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Date

Signature

Name (printed)

Contact Address

City, State, ZIP

Contact Phone

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

IN THE MATTER OF:

CASE NO.

CHILD/REN

RELEASE OF INFORMATION

I consent to the release of any information requested by the court in this case, regardless of whether the information is protected by federal or state law, as described in the Advice of Rights document.

I consent to release information and records to the court's designee.

This release is valid for 6 months from the date signed or until the conclusion of my case, whichever is sooner.

My Full Name: _____
First Middle Last

My Date of Birth (month/day/year): ____/____/____

My Social Security Number: ____-____-____

My Driver's License/ID State and Number: _____

Date

Signature

Name (printed)

Contact Address

City, State, ZIP

Contact Phone

INFORMATION AND ADVICE OF RIGHTS

You (or your child in certain cases) have the right to have a lawyer ('counsel') represent you in court. You may be eligible to have a lawyer appointed by the court if you financially qualify.

Application

You must provide the court with information about income and assets for both yourself, your spouse or Registered Domestic Partner, and any legal dependents in your household.

- You will be asked to sign a *Release of Information* form to allow the court to verify your information including employment, public benefits, and account information.
- The court may require proof of the information provided including bank statements, mortgage or lease information, and pay stubs.
- You will be asked for your Social Security Number for verification and collection purposes. You are not required to provide your SSN and cannot be denied appointed counsel if you do not provide it.
- The court may contact your employer, mortgage holder, landlord, and any other source of income or expenses declared.
- Your financial information is confidential and will not be viewable by the public. The court may provide the information to the district attorney under certain circumstances and may provide it to an outside collection agency and/or the Oregon Department of Revenue if necessary.
- If the court has reason to believe you knowingly provided false information, your financial statement may be sent to the district attorney for possible filing of criminal charges, your appointed attorney may be withdrawn, and you may be required to repay the cost to the state of providing court-appointed counsel.

Fees

- Application Fee: There is a \$20 application fee for appointed counsel. This fee is due today, even if your request for appointment of counsel is denied. The court may waive the fee in some cases based on your financial situation.
- Contribution Amount: If you qualify for appointed counsel, the court will determine whether you are able to contribute to the cost of your lawyer. This depends on your income, cash available, and certain assets.
- If you are ordered to pay an Application Fee and/or a Contribution Amount, the amount ordered will be entered as a Limited or Supplemental Judgment in your case. Unless the judgment is later changed, you are required to pay these amounts regardless of the outcome of your case.
- If you qualify for appointment of counsel, you cannot be denied a lawyer for failure to pay the Application Fee and Contribution Amount ordered.

Hearing or Appeal

- You can ask for a hearing with the trial court at any time to dispute any decision made on your application for appointment of counsel, including an order that you pay an Application Fee or Contribution Amount. This is not an appeal of a judgment, this is a request for a judge at the trial court to review the court's own decision.

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Parent Rights and Notice of Obligations (Juvenile Dependency)

Case Name _____ Case No. _____

Parent Rights: You have certain rights as the parent or guardian of a child in a dependency case.

- You have the right to have a lawyer represent you. If you don't have money to pay a lawyer, the court will provide one for you if you qualify. A lawyer can look at the child welfare files, talk to DHS and other people in the case, tell you about the law, help you understand and enforce your rights, attend meetings at DHS and other places, and help you at court hearings.
- You have the right to be at all hearings about your child.
- You have the right to a trial and to make the state prove the statements in the petition. At the trial, you can see and question all witnesses who testify, you can require witnesses to come to court and testify for you, and you can testify, which means you can talk under oath in the courtroom. You may not have the right to remain silent. If you have questions about your rights, talk to your lawyer.

Important information:

- If you want a court-appointed lawyer, you must fill out and turn in an application.
- You must keep the Court, your attorney, and DHS advised of your addresses – where you live and where you get mail. The Court may notify you of court hearings through the mail.
- If you fail to come to a hearing, the judge may hear evidence without you there and may enter an order that impacts your parental rights.
- DHS will ask you questions about relatives, grandparents and about whether you have American Indian or Alaskan Native heritage. Answering these questions will help DHS connect your child to family members and your tribe, if you have one.

Costs you may have to pay: The court may order you to pay certain costs related to this dependency case, including:

- The cost of your lawyer and your child's lawyer if lawyers are appointed.
- The cost of applying for a court-appointed lawyer.
- Other legal expenses for you and your child including witness fees and costs, the cost of service of summons, investigator fees, and evaluator fees.
- Child support if your child is not placed in your home. If you receive child support for your child, you may have to sign over your support to the State of Oregon.
- Other costs from your child's involvement in juvenile court.

Right to Appeal: You may be entitled to have a court appointed attorney represent you in an appeal. (ORS 419A.211) To appeal a circuit court's decision, you must file a notice of appeal with the Court of Appeals within 30 days of the entry of the court's final order in the court register. (The Court of Appeals may extend the deadline to file an appeal up to 90 days after entry of the judgment being appealed only in *very limited* circumstances.)

- If no recording or transcript of the proceeding was kept, you may file a request for rehearing with the circuit court within 15 days after the entry of the court's order and the court will grant a rehearing on the record with certain exceptions.
- Referee Decisions (ORS 419A.150): To appeal a decision by a referee, you must file the appeal with the circuit court within 10 days of entry of the referee's decision in the court register.

- Oregon Rules of Appellate Procedure (ORAP) and forms for appeal:
<https://www.courts.oregon.gov/courts/appellate/rules/Pages/orap.aspx>

Within **30 days** from the date the judgment you want to appeal is entered on the case register, you or your appeals attorney must:

1. Prepare a written and signed notice of appeal.
2. Serve copies of the notice of appeal on all parties, including the district attorney and the trial court administrator.
 - If you want the transcript of oral proceedings to be part of the record on appeal, a copy of the notice of appeal must be served on the office of the trial court administrator, "Attention: Transcript Coordinator."
 - Even if an audio or video record was made of the oral proceedings, rather than a written record, serve the transcript coordinator with a copy of the notice of appeal.
3. File the original, signed notice of appeal and proof of service at:
State Court Administrator
Appellate Court Records Section
1163 State Street, Salem, OR 97301-2563
4. Pay the filing fee required by the Court of Appeals.

While your case is on appeal, the trial court may stay (pause) your financial obligations if you ask. The Court of Appeals may stay (pause) your financial obligations if you ask.

